



SPONSOR: Rep. Gorman & Sen. Buckson
Rep. Burns

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 183

AN ACT TO AMEND TITLE 15 OF THE DELAWARE CODE RELATING TO SPECIAL ELECTIONS FOR
GENERAL ASSEMBLY.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 71, Title 15 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows and redesignating accordingly:

Chapter 71. Special ~~Election~~ Elections for the General Assembly

§ 7101. Vacancies in General Assembly; writs of election.

~~Whenever (a) If there is a vacancy in either house of the General Assembly, by reason of Assembly for any reason,~~
~~including the failure to elect, ineligibility, death, resignation or otherwise, resignation, and subsection (c) of this section~~
~~does not apply,~~ within ~~40~~ 5 days of the creation of the ~~vacancy~~ vacancy, ~~the presiding officer of the house in which the~~
~~vacancy exists shall issue~~ a writ of election ~~shall be issued by the presiding officer of the house in which the vacancy exists,~~
~~directed to the Department or, in case of necessity, in such other manner as shall be provided by law. Whenever there is~~
~~such that includes all of the following:~~

(1) The date of the special primary election under § 7102(a) of this title.

(2) The deadlines for candidates to file and withdraw under § 7103 of this title.

~~(b) If the house in which the vacancy in either house and the General Assembly is not in session, exists does not~~
~~have a presiding officer,~~ the Governor ~~may~~ shall issue a ~~the~~ writ of election ~~to fill such vacancy, which writ shall be~~
~~executed as a writ issued by the presiding officer of either house in case of vacancy. under subsection (a) of this section.~~

(c) In a year with a general election, if the vacancy occurs when the office being filled is on the general election
ballot and the date of the special primary election under § 7102(a) of this title is on or after May 15, the vacancy is filled at
the time of the general election.

(1) If the date of the special primary election under § 7102(a) of this title is on or before the date of the
primary election, the deadlines under § 3101 of this title are extended for that vacant office as follows:

a. The notification of candidacy is extended until 25 days before the date of the primary election.

b. The notification of candidacy may be withdrawn no later than 2 days after the filing deadline under paragraph (c)(1)a. of this section.

(2) If the date of the special primary election under § 7102(a) of this title is after the primary election, § 3306 of this title applies.

§ 7102. ~~Day~~ Days for holding special ~~election~~ elections.

(a) ~~Except as provided under subsection (b) of this section, the officer issuing the writ shall set the day~~ The date for holding the special primary election for the vacancy in the General Assembly, but such day shall not ~~in the writ issued~~ under § 7101 of this title must be no less than 30 nor more than 35 days and no more than 40 days next after the day of ~~issuing date of the writ.~~

(b) ~~If a vacancy occurs that would require a special election to be held after June 30 but before the date of the general election pursuant to subsection (a) of this section in the year of a general election, the officer issuing the writ shall set the time for the election to fill the vacancy at the time of the general election unless the vacancy occurs after September 1 but before the general election and the office for which there is to be a special election is not on the ballot for the aforesaid general election, in which event, the officer issuing the writ shall set the time for the special election no earlier than December 12 nor later than December 20 in the year of the general election. No more than 24 hours after the deadline for a candidate to withdraw under § 7103(e) of this title, the Commissioner shall provide a notice to the officer who issued the writ of election that states if a special primary election is necessary.~~

(c) ~~Notwithstanding subsection (b) of this section, if a vacancy occurs that would require a special election to be held after June 30 but before the date of the general election pursuant to subsection (a) of this section in the year of a general election, the presiding officer of the house in which the vacancy occurs may determine that a special election shall be held sooner than the date of the general election, in which event the requirements of § 7101 of this title and subsection (a) of this section shall be followed. Within 48 hours of receiving the Commissioner's notice under subsection (b) of this section, the officer who issued the writ of election shall issue the following:~~

(1) If a special primary election is not necessary, an amended writ of election establishing the date of the special general election as the date provided in the writ of election issued under § 7101 of this title.

(2) If a special primary election is necessary, a supplemental writ of election setting the date for holding the special general election. The date for the special general election must be no less than 35 days and no more than 40 days after the date of the special primary election.

(d) In a year with a general election, the days for special elections under this section are modified if § 7102A of this title applies.

§ 7102A. Days for holding special elections; years with a general election.

In a year with a general election, if the office being filled is not on the general election ballot, the days for special elections under § 7102 of this title are modified as follows:

(1) If the date of the special primary election under § 7102(a) of this title is after June 30 and on or before the day of the primary election:

a. The date of the special primary election is the day of the primary election.

b. The date of the special general election is the day of the general election.

(2) If the date of the special primary election under § 7102(a) of this title is after the day of the primary election:

a. The date of the special primary election under § 7102(a) of this title is no less than 35 and no more than 40 days after the general election.

b. The special general election is scheduled under § 7102(c) of this title.

§ 7103. Candidates.

(a)(1) No later than 5 days after the date of the writ of election under § 7101 of this title, a candidate must notify the Department using the forms required under § 3106(a)(2)a. of this title. ~~The county committee for each~~

(2) The Department shall provide notice of the candidates who have filed under paragraph (a)(1) of this section to the county committee for each political party in the same manner as notice is provided under § 3106 of this title.

(3)a. If no candidates of a political party eligible to place candidates on the general election ballot for the most recent past general election ~~may nominate~~ have filed under paragraph (a)(1) of this section, a candidate for the special general election by submitting a nomination to the Department office conducting the special election no later than 25 days before the date of the special election. ~~may be nominated as follows:~~

1. By that political party's county committee in the county in which the special election will be held.

2. If the legislative district up for election includes the area of more than 1 county, the county ~~committees~~ committee for each county shall agree on 1 candidate and the committee for the county where the candidate resides shall submit the nomination to the Department office conducting the special election. ~~nomination.~~

3. If a party eligible to place candidates on the ballot does not have a county committee in the county in which the special election will be held, the party's state committee may make the nomination.

b. A nomination under paragraph (a)(3)a. of this section must be submitted to the Department no later than 48 hours after the end of the 5 days under paragraph (a)(1) of this section. The nominating certificates must be in writing and, in each case, contain all of the following:

1. The name and residence of the individual nominated.

2. The office for which the individual is nominated.

3. The chair's own signature and place of residence.

4. The chair's acknowledgment of the certificate before an officer duly authorized to administer oaths and a certificate of that acknowledgment.

(b) ~~A person~~ An individual wishing to run as an unaffiliated candidate ~~who is eligible to hold the office up for in a~~ special general election must file a petition in support of that ~~person's~~ individual's own candidacy containing the signatures of at least 1% of all voters who are registered in the legislative district as of the first day of the month preceding the month during which the vacancy was created. The ~~person~~ individual must file the petition with the Department ~~office conducting~~ the special election no later than 25 days before the day date of the special general election.

(c) ~~If a party eligible to place candidates on the ballot does not have a county committee in the county in which the special election is to be held, the party's state committee may make the nomination. [Transferred.]~~

(d) ~~Any A~~ A candidate ~~for a vacancy in either house of the General Assembly under this section~~ must request a the criminal history background check ~~no earlier than 90 days before the candidate filing deadline and no less than 25 days before the special election from the State Bureau of Identification and required under § 3106(g) of this title and schedule the necessary appointment no later than 48 hours after the filing deadline. A candidate must provide proof of the this request and appointment before they can file or be nominated as a candidate or file a petition as a candidate under subsection (a) and (b) of this section.~~

(1) ~~A candidate who is nominated under subsection (a) of this section or files a petition under subsection (b) of this section will be is~~ considered a provisional candidate for election until the Commissioner ~~has made the determination~~ determines that the candidate is qualified under paragraph (d)(5) of this section.

(2)a. The State Bureau of Identification must ~~provide, within 10 days of the State Bureau of Identification's receipt of the candidate's request,~~ provide a report of the candidate's criminal history record or a statement that the State Bureau of Identification Central Repository contains no information relating to the candidate.

b. The State Bureau of Identification must provide the report under paragraph (d)(2)a. of this section as soon as possible and no more than 10 days after the State Bureau of Identification's receipt of the candidate's request.

(3) The information received by the Commissioner from the State Bureau of Identification under this section is not a public record as defined in Chapter 100 of Title 29.

(4) The criminal history background check must be paid for by the candidate but may be reimbursed to the candidate as an authorized campaign expenditure under this title.

(5)a. The Commissioner must determine ~~a minimum of 15 days before the special election~~ that a candidate is qualified under § 21 of Article II of the Delaware Constitution before a candidate's name may be listed on a special election ballot.

b. The Commissioner must make the determination under paragraph (d)(5)a. of this section as soon as possible and no less than 15 days before the special election.

~~(c) Nominating certificates shall be in writing and, in each case, shall contain the name of each person nominated, the person's residence and the office for which the person is nominated. The chairperson for the party making such certificates shall add thereto the chairperson's own signature and place of residence and shall acknowledge such certificate before an officer duly authorized to administer oaths, and a certificate of such acknowledgment shall be fixed to the instrument. No later than 2 days after the filing deadline, a candidate who has filed under this section may withdraw the filing by notifying the Department using the forms required under § 3106(c) of this title.~~

~~(f) Notwithstanding any other subsection of this section, nominations or petitions for a special election to be held on the date of the general election under the provisions of § 7102(b) of this title shall be filed no later than September 1 or 5 days following the vacancy, whichever is later, if the office is on the general election ballot, or on the date set by the Department if the election is to be held in December following the general election. [Repealed.]~~

§ 7104. Notices.

The Department shall provide notice of the a special election as follows:

(1) ~~On a.~~ Except as provided under paragraph (1)b. of this section, the Department shall post a proclamation reciting the writ and appointing the date for holding a special election on the next day after receiving any of the following: a writ of election;

1. A writ of election under § 7101 of this title.

2. An amended writ of election under § 7102(c)(1) of this title.

3. A supplemental writ of election under § 7102(c)(2) of this title.

~~unless the same shall be a Sunday or state holiday, and then on the next business day following, the Department shall post a proclamation reciting the writ and appointing a day for holding a special election and the officer or officers to~~

be chosen on the outside of the courthouse door of its county, the State's and the department's web site, and the state calendar; and

b. If the next day after receiving a writ under paragraph (1)a. of this section is a Sunday or state holiday, the Department shall post the proclamation on the next business day following receipt of the writ.

(2) The notices required under paragraph (1) of this section must include the office being filled and must be posted on all of the following:

a. The outside of the courthouse door of the county in which the special election will be held.

b. The state website.

c. The Department's website.

d. The state calendar.

(2) (3) On the fifth, ~~third~~ third, and last day prior to the ~~before~~ before a special election, ~~election noticed under paragraph (1) of this section~~, the Department shall publish notice of the special election in a newspaper of general circulation that covers the legislative district up for election.

§ 7105. Election officers and polling places.

(a) The Department, upon receiving a writ of election, shall appoint sufficient election officers to conduct the election and contract with the usual polling places for the legislative district for which the Department is conducting the special election.

(b) If a polling place is not available, the Department shall combine the election district or districts in that polling place with the election district or districts in a nearby polling place or contract with another location. The Department shall notify voters if their polling place is moved to another building.

§ 7106. General election laws applicable.

(a) ~~Every A special election in a representative or senatorial district under this chapter shall be provided for, opened, held, conducted~~ conducted, and closed and the result thereof ascertained and certified in the same manner, at the same places and subject to the same laws, so far as the same may be applicable, laws as prescribed for the general election; required for an election under Part III and Part IV of this title, unless otherwise provided for in this chapter or elsewhere in this title.

(b) ~~The Department may consolidate election districts within the same building. The requirements for a candidate in a special election under this chapter are the same as the requirements for a candidate under Part III of this title.~~

§ 7107. Board of canvass.

169 The Superior Court of each county in which a special election is held, as constituted under ~~article V~~, § 6 of Article
170 V of the State Delaware Constitution, shall, at 10 a.m. on the second day after ~~such~~ a special election, convene and perform
171 its duties, prescribed by ~~such~~ this section, with reference to ~~such~~ a special election, at the same place, with the same powers
172 and in the same manner as for a primary or general election.

173 § 7108. Term of office of one elected to fill vacancy.

174 The ~~person~~ individual elected in a special general election to fill a vacancy in the General Assembly shall hold
175 office for the residue of the term.

SYNOPSIS

This Act adds the opportunity for special primary elections in special elections for vacancies in either house of the General Assembly.

This Act shortens the time between some steps in the process so that if there is a special primary election, the special general election will only be between 35 and 50 days after the special election is held under current law. The time periods under this Act accommodate 10 days of early voting before the day of each election and are feasible with current technology and practices. Early voting and absentee voting requirements and procedures remain the same as for regular elections.

Under this Act, the general procedure for special elections to fill a vacancy in the General Assembly is as follows:

- The initial writ of election must be issued within 5 days of the creation of the vacancy. This writ will provide the date of the special primary election and the deadlines for candidates to file and withdraw.
- The special primary election must be held between 35 and 40 days after the date of the writ unless specific provisions for vacancies that occur 6 months before a general election apply.
- Candidates have 5 days to file and must schedule the appointment necessary for a criminal history background check no more than 48 hours after the filing deadline.
- The Department of Elections (Department) will provide notice of the candidates who have filed to political parties and if there are no candidates for a political party, the party has 5 days to submit a nomination to the Department.
- Within 24 hours after the deadline for a candidate to withdraw, the State Election Commissioner must provide notice to the officer who issued the writ of election that states if a special primary election is necessary. After receiving this notice, the officer does either of the following:
 1. If a special primary election is not necessary, the officer will issue an amended writ of election establishing that the special general election will be held on the date provided in the initial writ of election.
 2. If a special primary election is necessary, the officer will issue a supplemental writ of election setting the date for the special general election which must be between 35 and 40 days from the date of the special primary election.

To avoid holding elections too close together to be feasible for the Department and holding multiple elections for the same office within a few months, the general procedure for special elections under this Act is modified if a special election would otherwise be held within 6 months of a general election as follows:

- If the vacancy is for an office that is on the general election ballot and the date for the special primary election would be on or after May 15, a special primary election is not held. In this situation,
- If the special primary election would be on or before the primary election, the deadline to provide notification of candidacy for that office is extended until 25 days before the date of the primary election.
 - If the special primary election would be after the primary election, current law is unchanged, allowing a political party committee to file a supplemental certificate of nomination under § 3306 of Title 15.

If the vacancy is for an office that is not on the general election ballot, the special elections are held as follows:

- If the date of the special primary election would be after June 30 and on or before the date of the primary election, the special primary election is held on the day of the primary election and the special general election is held on the day of the general election.
- If the date of the special primary election would be after the day of the primary election, the date of the special primary election is 35 to 40 days after the general election and the special general election is held 35 to 40 days later.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

